

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

-----X
TAMEL HUNT,

SUMMONS

Plaintiff,

-against-

Plaintiff designates
BRONX County as the
place of trial

CITY OF NEW YORK, P.O. AUSTIN HIERONYMI,
P.O. PAUL G. KELLY, P.O. JOHN AVELLINO, SGT. JAMES
LUNDY and OFFICERS JOHN DOE I - V, names being
fictitious and meant to designate additional offending
officers unknowable by Plaintiff, Individually and in
their official capacities,

The basis of venue is:
CPLR 504 (3)

Defendants.
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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint to be assessed by the Court.

Dated: Bronx, N.Y.

January 10, 2024



By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff

To:
CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, NYC Law Dept.
New York, New York 10007;

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

P.O. AUSTIN HIERONYMI, Shield 24365, PBBX 48th Pct, 450 Cross Bronx Expwy, Bx NY 10457
P.O. PAUL G. KELLY, Sheila 3683, Warrant Section, 1 Police Plaza, NY NY 10038
P.O. JOHN AVELLINO, Shield 2306, NBMS, 1 Police Plaza, NY NY 10038
SGT. JAMES LUNDY, Shield 4135, Firearms Investigations Unit, 1 Police Plaza, NY NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
TAMEL HUNT,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, P.O. AUSTIN HIERONYMI,
P.O. PAUL G. KELLY, P.O. JOHN AVELLINO, SGT. JAMES
LUNDY and OFFICERS JOHN DOE I - V, names being
fictitious and meant to designate additional offending
officers unknowable by Plaintiff, Individually and in
their official capacities,

Defendants.
-----X

Plaintiff, by his attorney, Jonathan L. Gleit, Esq., complaining of the Defendants,
respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF TAMEL HUNT

1. At the time of the commencement of this action, plaintiff TAMEL HUNT was and
still is a resident of the County of Bronx, City and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and
State of New York.

3. That at all times herein mentioned, Defendant CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.
4. That the CITY OF NEW YORK maintains a Police Department.
5. That on and about February 4, 2021, P.O. AUSTIN HIERONYMI was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
6. That on and about February 4, 2021, at approximately 11 P.M., P.O. AUSTIN HIERONYMI was working and acting within the scope of his employment as a Police Officer, and under the color of law.
7. That on and about February 4, 2021, P.O. PAUL G. KELLY was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
8. That on and about February 4, 2021, at approximately 11 P.M., P.O. PAUL G. KELLY was working and acting within the scope of his employment as a Police Officer, and under the color of law.
9. That on and about February 4, 2021, P.O. JOHN AVELLINO was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

10. That on and about February 4, 2021, at approximately 11 P.M., P.O. JOHN AVELLINO was working and acting within the scope of his employment as a Police Officer, and under the color of law.
11. That on and about February 4, 2021, SGT. JAMES LUNDY was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
12. That on and about February 4, 2021, at approximately 11 P.M., SGT. JAMES LUNDY was working and acting within the scope of his employment as a Police Officer, and under the color of law.
13. That on and about February 4, 2021, OFFICERS JOHN DOE 1 - V, whose names are presently unknowable by Plaintiff, but are necessarily known to Defendants by virtue of his/her/their involvement with the arrest of Plaintiff, was/were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.
14. That on and about February 4, 2021, at approximately 11 P.M., OFFICERS JOHN DOE 1 - V were working and acting within the scope of his/her/their employment as Police Officers, and under the color of law.
15. That on or about February 4, 2021 at approximately 11 P.M., at or near the vicinity of the Northeast corner of East 168th Street and 3rd Avenue, Bronx, New York, the Plaintiff TAMEL HUNT was improperly arrested and confined without knowledge

of warrant, without privilege, proper authority or justification, having no reason in law or in fact to arrest or confine TAMEL HUNT.

16. That at the time and place mentioned above, the plaintiff TAMEL HUNT was lawfully present in the vicinity of the above location, being a passenger in a for hire motor vehicle.

17. That at the time and place mentioned above, the Defendants were occupants of a police vehicle and conducted an automobile stop of the vehicle that Plaintiff was a passenger in.

18. That preceding the above mentioned automobile stop, said automobile was not in any violation of any laws, including the vehicle and traffic law.

19. That the above mentioned automobile stop was entirely without any basis in law.

20. That the reasons for the above mentioned automobile stop were entirely pretextual.

21. That at some point following the above mentioned automobile stop, certain of the Defendants claimed the automobile lacked a light illuminating the automobiles license plate.

22. At the time and place aforementioned, said automobile had a properly illuminated license plate.

23. That at some point following the above mentioned automobile stop, certain of the Defendants claimed the automobile contained the smell of marijuana.
24. At the time and place aforementioned, said automobile did not contain the smell of marijuana.
25. That at some point following the above mentioned automobile stop, certain of the Defendants claimed the automobile contained the smell of alcohol.
26. At the time and place aforementioned, said automobile did not contain the smell of alcohol.
27. That during said automobile stop there was no basis in law for requiring Plaintiff to exit the aforesaid vehicle.
28. That there was no basis in law for questioning Plaintiff, nor detaining or searching Plaintiff.
29. That there was no basis in law for searching the vehicle in which Plaintiff had been a passenger.
30. That any allegedly illicit item found in said motor vehicle resulted from an unlawful, unconstitutional search and seizure and any arrest that flowed therefrom was tainted and could not lawfully constitute probable cause to arrest Plaintiff.

31. That the Defendants, their agents, servants and/or employees arrested the Plaintiff TAMEL HUNT without any basis in law and without reasonable, probable or just cause or justification.

32. That the defendants, their agents, servants and/or employees arrested the plaintiff TAMEL HUNT without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.

33. That Defendants, their agents, servants and/or employees continued to detain Plaintiff TAMEL HUNT and threaten and deny his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

34. That OFFICERS JOHN DOE I - V, failed to intercede in the arrest of Plaintiff despite having known, or having should have known, his arrest was unlawful and lacking in probable cause.

35. That the Defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the Plaintiff TAMEL HUNT, who was aware of his unlawful detention and confinement, and took his property without any basis in law or fact, thereby causing fright, shock, emotional distress and physical consequences.

36. That following his arrest, the Plaintiff was transported in hand restraints to the 47th Police Precinct, 4111 Laconia Avenue, Bronx, New York.

37. After arriving at the 47th Police Precinct, plaintiff's handcuffs were removed and he was subject to a pat-down search, however, one of the Defendant officers herein groped Plaintiff at his groin and attempted to probe his anus, which caused Plaintiff fright, shock, emotional distress.

38. Plaintiff was then restrained in hand cuffs and shackles and his anus was invasively probed without a specific articulable factual basis supporting a reasonable suspicion to believe Plaintiff was secreting evidence inside a bodily cavity.

39. That no emergency existed to justify the aforesaid invasive anal cavity search, nor was any warrant obtained for the same.

40. That at the aforesaid time, Plaintiff was not secreting anything in his anus.

41. That the aforesaid invasive anal search confirmed that Plaintiff was not secreting anything in his anus.

42. That after a period of detention at the 47th Police Precinct, Plaintiff was transported, in hand and leg restraints, to Bronx County Central Booking where his detention continued.

43. That on or about February 6, 2021 Plaintiff was arraigned and remanded directly to the Rikers Island Correctional Facility, well known for its inhumane conditions, which Plaintiff was forced to endure, and where he remained in pre-trial detention until July 11, 2022.

44. That following the aforementioned arrest, the Defendants falsely asserted that Plaintiff was in possession of a weapon and other items which false assertions violated Plaintiff's rights, including his right to a Fair Trial under the 6th Amendment to the United States Constitution, his right to Due Process under the 5th and 14th Amendments, as well as the New York State Constitution.

45. That the defendants P.O. AUSTIN HIERONYMI, P.O. PAUL G. KELLY, P.O. JOHN AVELLINO, SGT. JAMES LUNDY and OFFICERS JOHN DOE 1 - V did knowingly and maliciously provide false information to the prosecutor of the criminal action against plaintiff thereby initiating and causing him to suffer an unjust prosecution that defendants had no reasonable expectation would succeed, as it was without probable cause and based upon false or misleading testimony and information.

46. That the CITY OF NEW YORK and the named defendants did falsely and wrongfully arrest plaintiff without probable or reasonable cause nor knowledge of warrant, intended to and did confine plaintiff without his consent, which non-

privileged confinement plaintiff was consciously aware of and did initiate a criminal proceeding without probable cause, maliciously.

47. That all criminal charges brought against plaintiff, which were brought under Docket number CR-002015-21BX in the Criminal Court of the City of New York, Bronx County and IND-00437/2021 in the Bronx Supreme Criminal Court regarding the incidents of February 4, 2021, were dismissed on August 9, 2023, and the criminal prosecution was terminated in Plaintiff's favor.

48. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of arresting innocent citizens and engaging in a policy and procedure of arresting persons upon pretext and/or the fabrication of evidence, without any probable cause or reasonable basis to do so for nefarious, unlawful reasons such as the fulfillment of arrest quotas, advancement of employment opportunities and to subjugate minority populations without reprimand to the offending officers.

49. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and wide-spread practice of of stopping and searching automobiles primarily driven by male persons of a racial minority, without reasonable suspicion that a crime or violation had been committed.

50. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and wide-spread practice of encouraging illegal traffic stops, searches and seizures of persons and things in ill-fated attempts and overzealous zeal in searches for weapons.

51. That said illegal and unlawful arrests without reasonable or probable cause are a matter of policy and record and openly acknowledged or known by the defendants, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein.

52. Said policy, practice and procedure of having arrest quotas, euphemistically known as productivity goals, which result in the false arrests of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department Det. Jason Arbeeney, whereat Justice Gustin Reichbach commented on the evidence presented by several witnesses that officers were expected to make certain arrest goals.

53. Additionally in the case of Floyd, et al. v. City of New York, et al., In the Southern District of New York Case 08 Civ.1034, New York City Police Officer Adhyl Polanco testified in open court and under oath that the NEW YORK CITY POLICE

DEPARTMENT routinely arrest primarily minority populations without a legal reason to do so, and are required or expected to do so, to satisfy arrest quotas. Said arrest quotas lead to a practice and procedure of, for instance, arresting persons for conduct that is not criminal.

54. Additionally, Officer Craig Matthews presented evidence in federal court that he was subject to retaliation for reporting said quota system and Officers Pedro Serrano and Adrain Schoolcraft presented evidence in recorded form of the use of arrest quotas by the New York City Police Department. Other officers have made the same or similar allegations in open court.

55. Furthermore patterns of the NYPD and their officers alleging persons were involved in the unlawful possession of weapons resulting from the wide-spread practice of conducting extra-constitutional searches leading to the unlawful arrests of a multitude of persons has occurred to such individuals as Ahkenath Zolar on July 10, 2013, Geoffrey Robinson on July 7, 2015 and Richard Robinson on May 18, 2018 as well as hundreds of other innocent persons know to the defendants by virtue of the dismissal of all charges against such persons, and convictions for police officers lying or making false statements under oath, for, amongst other reasons, a lack of evidence and

illegal searches and seizures, as well as complaints, claims and actions brought against said officers, and upon the CITY OF NEW YORK's own tabulations and investigations.

56. Additionally on October 1, 2015 the New York City Department of Investigation Office of the Inspector General for the NYPD issued a report, which is incorporated herein and can be found at http://www.nyc.gov/html/oignypd/assets/downloads/pdf/oig_nypd_use_of_force_report_-_oct_1_2015.pdf . That report determined that the New York City Police Department routinely fails to discipline officers who have engaged in misconduct, and fails to adequately track instances of abuse of power, and fails to properly train officers, and despite those findings, and perfunctory attempts at remediation, the practice continues unabated, and was evidenced by the The Report of the Independent Panel on the Disciplinary System of the New York City Police Department, found at <https://www.independentpanelreportnypd.net> and incorporated herein. This report follows years of repeated similar findings such as the Mollen Commission which found that the New York City Police Department continually undergoes cycles of corruption and ill-fated attempts at reform.

57. Furthermore, searchable databases are now publicly available which demonstrate, amongst other things, and relevant to this action, that officers of the New York City Police Department, and specifically officers making unlawful pretextual

police automobile stops and illegal strip searches, have a history of allegations of misconduct such as abuse of authority and threatening arrest and fabricating evidence similar to those alleged herein, demonstrating the unlawful widespread practice and procedures of the CITY OF NEW YORK, and named and unnamed officers of the NYPD similarly situated as pled herein: see, for instance: <https://www.nyclu.org/en/campaigns/new-york-police-transparency-database/new-york-police-department>.

58. Publicly available data bases also demonstrate the unlawful practice and procedure of racially motivated automobile stops, such as <https://www.nyclu.org/en/nypd-traffic-stops-data> demonstrating that such automobile stops occur disproportionately to persons of color, and that persons of color are disproportionately arrested after such automobile stops, including at the 47th Police Precinct, which itself has a disproportional share of such stops and arrest.

59. Since at least 2004 the CITY OF NEW YORK has been on notice of its unlawful and widespread practice and procedure of conducting illegal and unlawful strip searches, see for instance <http://www.nyc.gov/html/ccrb/downloads/pdf/stripsearchletter.pdf> and said practice has continued, unabated, despite continually undergoing cycles of perfunctory ill-fated attempts at reform and is further

demonstrated by the allegations of unlawful strip searches indicated in the above noted data bases.

60. Despite the ongoing widespread practices detailed herein, the CITY OF NEW YORK, failed to properly train, retrain, or discipline its Officers to prevent the insults complained of herein.

61. That more specifically, Defendant P.O. AUSTIN HIERONYMI has exhibited a pattern of arresting innocent persons, has been named in at least 3 prior lawsuits, has as at least 20 allegations of misconduct lodged against said Defendant including unlawful searches and seizures and at least 6 internal investigations, including those for disputed stops and searches of automobiles and individuals which lead to no or perfunctory discipline.

62. That more specifically, Defendant P.O. PAUL G. KELLY has exhibited a pattern of arresting innocent persons, has been named in at least 5 prior lawsuits as well and at least 3 allegations of misconduct have been lodged against said Defendant including and at least 5 internal investigations, including those for disputed arrests which lead to no or perfunctory discipline and was subsequently promoted..

63. That more specifically, Defendant P.O. JOHN AVELLINO has exhibited a pattern of arresting innocent persons, has been named in at least 5 prior lawsuits as well as at

least 10 allegations of misconduct have been lodged against said Defendant including and at least 7 internal investigations, including those for disputed stops and searches of automobiles and individuals which lead to no or perfunctory discipline and was subsequently promoted.

64. That more specifically, Defendant P.O. JAMES LUNDY has exhibited a pattern of arresting innocent persons, has been named in at least 2 prior lawsuits, at least 12 allegations of misconduct have been lodged against said Defendant including and at least 4 internal investigations, including those for disputed stops and searches of individuals which lead to no or perfunctory discipline and was subsequently promoted.

65. That no negligence or actions on the part of the Plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

66. The herein above described actions and omissions, engaged in under the color of law by the defendants, their supervisors and commanders and the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, institutionalized procedure and act, deprived the Plaintiff TAMEL HUNT of rights secured by the Constitution and laws of the United States, including, but not limited to the First Amendment right of freedom of expression, the Fourth Amendment right to be free from unlawful seizures of her person, the Fifth Amendment rights of due process of

law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, the Sixth Amendment right to a fair trial, the Eighth Amendment right to be free from cruel and unusual punishment, the 14th Amendment's right to be free of a deprivation of liberty without due process and equal protection, and as applicable under Title 42 U.S.C. 1983, et seq.

67. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

68. That as a result of the foregoing, the Plaintiff TAMEL HUNT was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFF TAMEL HUNT

69. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 68 as though more fully set forth herein.

70. That on September 14, 2023 plaintiff had caused a Notice of Claim, sworn to by or on behalf of the claimant, to be presented to the defendant CITY OF NEW YORK, by presenting a copy thereof to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and

claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

71. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant,

72. That the CITY OF NEW YORK Noticed Plaintiff of a General Municipal Law §50h hearing at which Plaintiff appeared and testified thereat on January 5, 2024.

73. That this action is being commenced within one year and ninety days after accrual of the causes of action, or within the time allowed by law.

74. That defendants, their agents, servants and/or employees initiated a prosecution of plaintiff and continued to threaten plaintiff's liberty and freedom after they knew, or should have known that his arrest was without probable cause.

75. That the prosecution of Plaintiff was based solely upon evidence unlawfully obtained in contravention of the State and Federal Constitutions and law, which could not be utilized to constitute probable cause to arrest or prosecute Plaintiff.

76. That the defendants, their agents, servants and/or employees continued to prosecute the criminal action against the plaintiff due to racism and prejudice and without any basis in law or fact.
77. That said prosecution did intend to and caused Plaintiff to be confined.
78. That the defendants P.O. AUSTIN HIERONYMI, P.O. PAUL G. KELLY, JOHN AVELLINO, SGT. JAMES LUNDY and OFFICERS JOHN DOE I - V, did knowingly and maliciously provide false information to the prosecutor of the criminal action and/or falsely and/or misleadingly provide sworn testimony or statements against Plaintiff thereby causing him to suffer an unjust prosecution and confinement initiated without probable cause that the prosecution would succeed.
79. That all criminal charges brought against plaintiff, which were brought under Docket number CR-002015-21BX in the Criminal Court of the City of New York, Bronx County and IND-00437/2021 in the Bronx Supreme Criminal Court regarding the incidents of February 4, 2021, were dismissed on August 9, 2023, and the criminal prosecution was terminated in Plaintiff's favor.
80. That by reason of the aforementioned, the Defendants actions amounted to a malicious prosecution of TAMEL HUNT.

81. As a result of the malicious prosecution, Plaintiff's liberty was threatened and denied and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured and forced to defend his liberty for a period of approximately nine hundred and sixteen days.

82. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

83. That as a result of the foregoing, the Plaintiff TAMEL HUNT was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFF TAMEL HUNT

84. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 83 as though more fully set forth herein.

85. That the Defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

86. That the Defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and /

or servants and negligently retained its employees, agents, and / or servants in the proper and lawful arrest of individuals.

87. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the Defendant's negligence, Plaintiff TAMEL HUNT was denied freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, and still are and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the Plaintiff and for the purchase of drugs and medicines, and that Plaintiff was and in the future will be prevented from attending to Plaintiff's usual vocation and avocations; all to the Plaintiff's damage in sums which exceed the jurisdiction of all lower Courts.

88. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

WHEREFORE, Plaintiff demands judgment against the Defendants on the First Second and Third Causes of Action, and inclusive of punitive damages as applicable to individual defendants, and attorneys fees as permitted by statute, in sums which exceed

the jurisdiction of all lower Courts, together with the costs and disbursements of this

action.

Dated: Bronx, N.Y.

January 10, 2024



By: JONATHAN L. GLEIT, ESQ.

Attorney for Plaintiff

TAMEL HUNT

888 Grand Concourse

Suite 1-O

Bronx, NY 10451

(718) 742-0200

To:

CITY OF NEW YORK CORPORATION COUNSEL

100 Church Street, NYC Law Dept.

New York, New York 10007;

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P.O. PAUL G. KELLY, Sheila 3683, Warrant Section, 1 Police Plaza, NY NY 10038

P.O. JOHN AVELLINO, Shield 2306, NBMS, 1 Police Plaza, NY NY 10038

SGT. JAMES LUNDY, Shield 4135, Firearms Investigations Unit, 1 Police Plaza, NY NY 10038

PLAINTIFF'S VERIFICATION**Pursuant to CPLR Rule 2106**

TAMEL HUNT affirms the following to be true under the penalties of perjury:

I am the Plaintiff in the within action and have read the annexed

COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.

I affirm this 10th day of January, 2024, under the penalties of perjury under the laws of New York, which may include a fine or imprisonment, that the foregoing is true, and I understand that this document may be filed in an action or proceeding in a court of law.



TAMEL HUNT